HEADNOTE

> *"The UPC system of adjustable, value-based ceilings for representation costs safeguards that the costs which may be imposed on the unsuccessful party are reasonable and proportionate whilst, at the same time, ensuring that the maximum amounts that may be recovered are not too low for the successful party."*

COURT
Central Division in Munich

PROCEEDINGS
Costs order

PATENT
EP 4 226 039

WIND TURBINE POWER TRANSMISSION SYSTEM

KEYWORDS
Art. 69 UPCA | R. 152.2 RoP | Applicable ceiling for recoverable costs | Absolute cap | Representation costs | Other expenses

SUMMARY
The Central Division in Munich ruled on a costs order. The patent at issue relates to a wind turbine power transmission system. According to the headnotes of the decision, the UPC system uses adjustable, value-based ceilings for representation costs. This approach ensures that costs imposed on unsuccessful parties remain reasonable and proportionate. At the same time, the system protects the successful party's ability to recover adequate compensation. The maximum recoverable amounts are therefore sufficient to reflect the party's legitimate litigation expenses.